Postscript

Now that you have read through the stories of India's ten forgotten cases, I conclude this book with some final reflections. When I finished writing the book, the first question I asked myself was – surely these cases must be the exception rather than the norm? In some respects, they are. Not every challenge to national security legislation takes the Supreme Court eighteen years to decide, or is decided close to four decades after the legislation was enacted (as in the Naga People's Movement case). No constitutional crisis would have ensued had Keshav Singh simply apologized for his 'pesky pamphleteering' (as his co-pamphleteers did) and accepted a reprimand from the Uttar Pradesh Legislative Assembly. Had it not been for Nani Palkhivala's masterful litigation strategy, the Minerva Mills case may well have been just another unremarkable case about the nationalization of a business. And the Mathura and R.D. Bajaj cases were unique simply because most women in their positions would not have filed police complaints in the first place, let alone pursue them to their logical conclusion.

However, upon closer scrutiny, many of the cases considered in this book exhibit features that are unnervingly common to their genre. The Champakam Dorairajan case was among the first to set into motion the idea that reservations are an exception to (rather than a facet of) the right to equality. This ignited the 'reservation versus merit' debate that plays out over and over in courts' decisions. R.D. Bajaj and Mathura yielded different outcomes – one ended in a conviction for Gill, the other in acquittals for Tukaram and Ganpat. But both decisions rested on gender stereotypes that are more common in the decisions of the courts than you may have hoped or expected (recall the Punjab and Haryana High Court's observation that Bajaj was a 'symbol of modesty' and the Supreme Court's finding that it